BRENDAN NGWA NFORBI
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **AT&T MOBILITY SERVICES LLC, a Delaware limited liability company,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) FCRA, 15 U.S.C. § 1681b(b)(3)(A); (2) ICRAA, Civ. Code §§ 1786.40, 1786.50; (3) Penal Code § 290.46(j) *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

I. NATURE OF THE ACTION

1. On May 28, 2026, AT&T issued Plaintiff an official written offer for a Retail Sales Consultant position at 2439 West Kettleman Lane, Lodi, California.

2. The offer specified $24.95 per hour, targeted variable compensation of $13,700 annually prorated for part-time hours, reporting manager Orville R. Bell, and a tentative June 15, 2026 start date.

3. Plaintiff accepted through Workday and began onboarding.

4. At approximately 10:19 a.m., First Advantage sent Plaintiff the employment-screening task AT&T had ordered for "AT&T Non Management," account 132156.

5. At approximately 12:23 p.m., AT&T recruiter Richard Patterson texted that the manager no longer wanted to proceed with Plaintiff's offer because Plaintiff did not pass Spanish and a Spanish speaker was needed.

6. Plaintiff had not received a copy of any consumer report or Summary of Rights before the 12:23 p.m. rescission.

7. Plaintiff alleges on information and belief that, before the rescission, First Advantage furnished AT&T a consumer-report result concerning Plaintiff and that AT&T based its decision in whole or in part on that report.

8. Plaintiff further alleges on information and belief that the report contained information disclosed pursuant to California Penal Code § 290.46, including Plaintiff's California registry information, and that AT&T used that information for an employment purpose.

9. Plaintiff does not allege that the Spanish explanation was necessarily false. The timing and sequence create competing explanations that can be resolved through AT&T's, LTI's, and First Advantage's records.

II. JURISDICTION AND VENUE

10. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 because Count One arises under the Fair Credit Reporting Act.

11. This Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over Counts Two and Three because they arise from the same offer, screening, and employment decision.

12. Plaintiff does not presently invoke diversity jurisdiction. AT&T Mobility Services LLC is a limited liability company, and the citizenship of every member has not been established.

13. Plaintiff has Article III standing. He alleges a concrete economic injury—the loss of the accepted Lodi employment and its documented $24.95 hourly compensation—fairly traceable to the report-based employment action alleged and redressable by damages.

14. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred in Lodi, San Joaquin County, California.

15. Under Eastern District of California Local Rule 120(d), San Joaquin County civil actions are commenced on the Sacramento side of the District.

III. PARTIES

16. Plaintiff Brendan Ngwa Nforbi is a natural person and California resident.

17. Defendant AT&T Mobility Services LLC is alleged to be the legal entity that issued or controlled requisition R-106742 and the associated employment screening and decision.

18. Plaintiff will confirm the exact employing/report-user entity from AT&T and First Advantage records before filing. He does not name AT&T Inc. merely because it is the parent brand.

19. First Advantage Background Services Corp. is the confirmed screening vendor in this transaction but is not presently named as a defendant absent an independent CRA violation.

20. Richard Patterson and Orville R. Bell are percipient witnesses, not presently named defendants.

IV. APPLICATION, SPANISH ASSESSMENT, AND OFFER

21. On May 16, 2026, Plaintiff applied for requisition R-106742, Bilingual Spanish Retail Sales Consultant at the Lodi location.

22. Plaintiff also applied for R-107776, a non-bilingual Retail Sales Consultant position at Stockton Pacific.

23. Both applications advanced through AT&T's interview process.

24. On May 22, Language Testing International advised Plaintiff that AT&T had requested an ACTFL OPIc Spanish-speaking assessment.

25. The assessment window expired May 25, 2026, and LTI stated that the rating would be supplied to AT&T's recruiting system.

26. Plaintiff's present file does not contain the score, recording, passing threshold,

timestamp when AT&T received the score, or internal decision notes.

27. On May 28 at approximately 10:13 a.m., Workday sent Plaintiff a “Welcome to the team” message and official offer for R-106742.

28. The written offer identified the role, manager, Lodi location, $24.95 hourly rate, targeted variable compensation, and tentative June 15 start.

29. The offer listed standardized background checks among its contingencies.

30. The two-page offer in Plaintiff's present file did not identify passage of the earlier Spanish assessment as an outstanding post-offer contingency.

31. Plaintiff accepted the offer through Workday.

32. At approximately 10:15 through 10:17 a.m., Workday issued onboarding tasks concerning documents, government identifiers, and personal information.

V. FIRST ADVANTAGE SCREENING AND RESCISSION

33. At approximately 10:19 a.m., First Advantage sent Plaintiff an employment-screening task on behalf of “AT&T Non Management,” account 132156.

34. This transaction-specific communication confirms AT&T had initiated a First Advantage employment-screening workflow.

35. The invitation does not, by itself, establish when First Advantage completed a report, when any result became available, what the report contained, or when AT&T accessed

it.

36. At approximately 12:23 p.m., Patterson texted Plaintiff that the manager no longer wanted to proceed with “your offer” because Plaintiff did not pass Spanish and a Spanish speaker was needed.

37. That text is AT&T's contemporaneous stated reason. Plaintiff does not concede that the assessment was actually failed, that the result independently required rejection, or that it was the sole cause of the reversal.

38. Before 12:23 p.m., AT&T did not provide Plaintiff a copy of a consumer report or written Summary of Rights.

39. At the adverse action, AT&T did not advise Plaintiff that an investigative consumer report had been obtained and did not provide First Advantage's name and address as an adverse-action notice under Civil Code § 1786.40.

VI. FACTUAL BASIS FOR REPORT RECEIPT AND USE

40. Plaintiff alleges on information and belief that First Advantage furnished AT&T a consumer-report result concerning Plaintiff before the 12:23 p.m. rescission and that AT&T based the rescission in whole or in part on that report.

41. The factual basis includes the formal offer and acceptance; immediate onboarding; AT&T's initiation of a First Advantage screening at 10:19 a.m.; the reversal approximately two hours later; the offer's express background-check contingency; and the absence of the required pre-adverse report and Summary of Rights.

42. Whether a report or partial report actually existed and was furnished before 12:23 p.m. is recorded in First Advantage's order-generation, component-completion, transmission, and AT&T-access logs.

43. Plaintiff does not plead the mere screening invitation itself as a “consumer report” or as an adverse result.

VII. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

44. At the time of the AT&T screening, Plaintiff was publicly listed on California's Megan's Law internet website.

45. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is AT&T's report, and he does not attach or describe those reports as if they were.

46. On information and belief, the AT&T-specific report contained information concerning Plaintiff disclosed pursuant to Penal Code § 290.46.

47. On information and belief, AT&T received, accessed, considered, and used that information for a purpose relating to employment.

48. Plaintiff does not possess AT&T's transaction-specific report and does not allege its source-field wording as known fact. The source wording, component status, adjudication code, transmission time, access logs, and AT&T reason codes are within AT&T's and First Advantage's systems.

VIII. THE SPANISH EXPLANATION DOES NOT ELIMINATE THE PLEADED REPORT THEORY

49. Plaintiff acknowledges the Spanish explanation and does not ask the Court to assume it was pretext merely because screening also occurred.

50. The following facts remain unresolved: the actual LTI score, the passing standard, when AT&T received the score, whether the score was known before the 10:13 offer, whether failure automatically required disqualification, whether First Advantage furnished a report before 12:23, and every reason actually considered by the decisionmaker.

51. The FCRA does not require a consumer report to be the sole reason for adverse action; § 1681b(b)(3)(A) applies when the action is based in whole or in part on the report.

52. If AT&T proves that the Spanish result independently and inevitably disqualified Plaintiff before any report result was furnished or used, that evidence may defeat causation. The present complaint does not conceal that defense.

IX. SOURCE-SPECIFIC § 290.46 DEFENSES

53. Plaintiff does not allege that AT&T was barred from considering lawfully and independently obtained conviction information.

54. The § 290.46 claim is based on alleged use of information disclosed pursuant to § 290.46 itself.

55. If the AT&T-specific report is properly considered and contradicts Plaintiff's information-and-belief source allegation, the claim must conform to that document.

X. COUNT ONE

Fair Credit Reporting Act — 15 U.S.C. § 1681b(b)(3)(A)

56. Plaintiff realleges paragraphs 1 through 55.

57. Plaintiff was a consumer, AT&T procured or caused a consumer report to be procured for employment purposes, and AT&T was a person using the report within the meaning of the FCRA.

58. Before taking adverse action based in whole or in part on an employment consumer report, § 1681b(b)(3)(A) requires the person intending to take the action to provide the consumer a copy of the report and a written description of FCRA rights.

59. On information and belief, AT&T's rescission was based in whole or in part on a consumer report furnished by First Advantage.

60. AT&T did not provide Plaintiff a copy of that report or the written Summary of Rights before the 12:23 p.m. adverse action.

61. AT&T thereby violated § 1681b(b)(3)(A).

62. The count is timely without delayed discovery because the alleged violation occurred May 28, 2026.

63. AT&T's noncompliance was negligent and, on proof, willful. AT&T's own First Advantage workflow referenced FCRA disclosure and authorization immediately before the

alleged adverse action. Acting without first providing the report copy is reckless disregard if that pre-adverse copy was the policy on the form. Willfulness is pleaded as a damages theory under 15 U.S.C. § 1681n, not as a separate count.

64. Plaintiff seeks relief authorized by 15 U.S.C. §§ 1681n and 1681o according to proof.

XI. COUNT TWO

California Investigative Consumer Reporting Agencies Act

Civil Code §§ 1786.40, 1786.50

65. Plaintiff realleges paragraphs 1 through 55.

66. On information and belief, the First Advantage employment background report was an investigative consumer report under ICRAA.

67. Civil Code § 1786.40 requires the user, when employment is denied under circumstances in which an investigative consumer report was obtained, to advise the consumer and supply the name and address of the investigative consumer reporting agency.

68. On information and belief, AT&T denied the employment under circumstances in which it had obtained the First Advantage investigative consumer report.

69. AT&T did not provide the § 1786.40 advice at the time of the rescission.

70. This alleged omission is distinct from Count One's federal pre-adverse omission.

71. The count is timely without delayed discovery because the alleged conduct occurred May 28, 2026.

72. Plaintiff seeks the remedies authorized by Civil Code § 1786.50 according to proof.

XII. COUNT THREE

Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

Penal Code § 290.46(j)(2)(E), (j)(4)(A)

73. Plaintiff realleges paragraphs 1 through 55.

74. Plaintiff is a person as to whom information is disclosed through California's Megan's Law internet website.

75. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment except where statutorily authorized.

76. On information and belief, First Advantage furnished AT&T information concerning Plaintiff disclosed pursuant to § 290.46.

77. On information and belief, AT&T received, accessed, considered, and used that information for an employment purpose.

78. Plaintiff alleges the information was a substantial factor in rescinding the accepted Lodi offer.

79. Plaintiff is unaware of another law authorizing use of § 290.46-disclosed information for this retail-sales position.

80. The alleged use occurred May 28, 2026. A September 2026 filing is timely under either a potentially applicable one-year penalty characterization or a three-year statutory-liability characterization. Plaintiff therefore need not ask the Court to resolve that characterization at the pleading stage.

81. AT&T thereby violated Penal Code § 290.46(j)(2)(E).

82. Plaintiff seeks the remedies authorized by § 290.46(j)(4)(A), without duplicative recovery.

83. Plaintiff does not presently seek preventive relief under § 290.46(j)(4)(B).

XIII. DAMAGES

84. Plaintiff lost an accepted position offered at $24.95 per hour and lost the opportunity to earn targeted variable compensation according to the offer and proof.

85. The offer does not state guaranteed weekly hours. Plaintiff does not invent them.

86. Plaintiff seeks only damages and statutory relief legally recoverable under the three opening causes of action and will avoid double recovery.

XIV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests:

A. Actual and compensatory damages according to proof;

B. Relief authorized by 15 U.S.C. §§ 1681n and 1681o;

C. Relief authorized by Civil Code § 1786.50;

D. Relief authorized by Penal Code § 290.46(j)(4)(A);

E. Taxable costs and attorney's fees only where authorized, including if counsel later appears;

F. Prejudgment and postjudgment interest as allowed by law; and

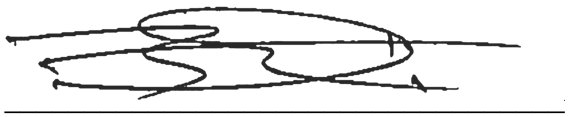
G. Such other nonduplicative relief as the Court deems proper.

XV. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 16, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona